

22NWCV00692 22NWCV00692

County: los-angeles

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Plaintiff Truworks

Construction's Motion for Protective Order is DENIED.

Plaintiff to give notice.

Background

This is an action for breach of construction contract. On August 10, 2022, Plaintiff Truworks Construction ("Plaintiff") filed this action against Defendant Monique Zaky ("Defendant") and Does 1 to 30. The Complaint alleges the following causes of action: 1) Breach Of Contract, 2) Account Stated, and 3) Open Book Account.

On January 19, 2026, Defendant served Form Interrogatories, Specially Prepared Interrogatories, Demand to Produce Documents and Requests for Admissions on Plaintiff (hereinafter, "Discovery"). (Sperling Decl., ¶ 3.)

Plaintiff now moves for a protective order extending the time for Plaintiff to respond to the Discovery for 60 days. Plaintiff also requests sanctions in the amount of \$2,600.00.

On May 26, 2026, Defendant filed an opposition. No reply has been filed as of July 15, 2026.

Legal Standard

In regard to interrogatories,

Code of Civil Procedure section 2030.090 states the following: “(b) The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended.” (Code Civ. Proc., § 2030.090, subd. (b)(3).)

In regard to inspection demands,

Code of Civil Procedure section 2030.090 states the following: “(b) The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (2) That the time specified in Section 2031.260 to respond to the set of demands, or to a particular item or category in the set, be extended.” (Code Civ. Proc., § 2031.060, subd. (b)(2).)

In regard to requests for

admission, Code of Civil Procedure section 2033.080 states the following: “(b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: (3) That the time specified in Section 2033.250 to respond to the set of admission requests, or to particular requests in the set, be extended.” (Code Civ. Proc., § 2033.080, subd. (b)(3).)

Discussion

The Court initially notes that

this Motion was filed by Plaintiff’s former counsel, Mr. Dean Sperling.

On February 16, 2026, Mr.

Sperling met and conferred with Defense counsel via telephone. (Sperling Decl.,

¶ 4.) Mr. Sperling explained that he planned to file a motion to be relieved as counsel due to his health issues and lack of communication by Plaintiff. (Ibid.)

Mr. Sperling requested that Defendant grant Plaintiff an extension to respond to the Discovery so that Plaintiff could obtain new counsel. (Ibid.)

Defense counsel denied Mr. Sperling’s request, stating that 1) there was no

hearing date on the motion to be relieved as counsel, and 2) the discovery responses were necessary in light of the Court's July 13, 2026 mediation deadline. (Ibid.) On February 19, 2026, Mr. Sperling filed this Motion.

The Court notes that the Notice of Motion states that the requested extension date is "60 days after the hearing on this motion." (Notice, 2:2.) However, the Motion later states that an "extension of up to 60 days after the hearing on the motion withdraw as counsel for Plaintiff is proper." (Mot., 11:11-12.)

The Court notes that, on March 19, 2026, the Court granted Plaintiff's former counsel's Motion to be Relieved as Counsel. (3/19/26 Minute Order.) Thus, more than 60 days have passed since the hearing on Mr. Sperling's Motion to be Relieved as Counsel. The Motion is thus moot as to that request.

On May 26, 2026, Defendant filed an opposition to this Motion. Defendant asserts that a 60-day extension past the hearing on the instant Motion would set the response deadline to approximately September 2026, a date after the scheduled July 13, 2026 mediation and the August 12, 2026 trial date. Further, Plaintiff fails to demonstrate good cause in support of the Motion—Plaintiff does not demonstrate how the discovery is oppressive, harassing, privileged, impossible to answer, or unduly burdensome.

No reply has been filed.

The Court notes that, in May 2026, Defendant filed motions to compel responses to the Discovery and a motion to deem the Requests for Admissions, admitted.

On June 15, 2026, Plaintiff filed a Substitution of Attorney, in which Mainak D'Attaray was substituted in as counsel.

On July 2, 2026, the Court granted Defendant's Motion to Compel Plaintiff's Responses to Form Interrogatories, Set One, and denied as moot Defendant's Motion to Deem Requests for Admissions, Set One, Admitted. The Court also continued trial to April 19, 2027. (7/22/26 Minute Order.)

The Court finds that the instant Motion is thus moot as to those discovery requests.

Considering the moving papers and the changed circumstances, the Court finds that a protective order is not warranted as to the two remaining discovery requests. Plaintiff has not demonstrated how the discovery is oppressive, harassing, unduly burdensome, or any other circumstance warranting an extension 60 days past this hearing.

The Court further notes that, as to the two remaining discovery requests, Defendant has two motions to compel responses on calendar for August 25, 2026 and October 13, 2026. The parties are encouraged to meet and confer regarding the remaining discovery requests in light of these upcoming discovery motions.

Accordingly, Plaintiff's Motion for Protective Order is denied.

Sanctions

Plaintiff requests sanctions in the amount of \$2,600.00.

In opposition, Defendant requests sanctions in the amount of \$1,350.00 based on Plaintiff's former counsel's misuse of the discovery process.

The Court denies both parties' requests for sanctions in light of the circumstances.